

25CHCV00915 25CHCV00915

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Case Number: 25CHCV00915 Hearing Date: September 14, 2026 Dept: F47

Dept. F47

Date: 9/14/26

TRIAL DATE: 8/16/27

Case #25CHCV00915

MOTION TO

COMPEL FURTHER RESPONSES

(Requests for

Production of Documents, Set 1)

Motion filed on 3/2/26.

MOVING PARTY: Plaintiff Kyunga Kim

RESPONDING PARTY: Defendant Kia America

NOTICE: ok

RELIEF REQUESTED: An order striking Defendant Kia

America's objections and compelling further responses to Plaintiff Kyunga Kim's Requests for Production of Documents, Set 1, Nos. 10, 16-19, 21-22, 27, 40-43 and 56.

RULING: The motion is granted as set forth below.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of Plaintiff Kyunga Kim's (Plaintiff) purchase of a 2022 Kia Carnival (the Vehicle) on or about 1/29/22. The Vehicle was manufactured and/or distributed by Defendant Kia America (Defendant).

Plaintiff contends that the Vehicle suffers from defects, including the Engine Defect, and that Defendant has been unable to repair the Vehicle within a reasonable number of attempts. Plaintiff also alleges that Defendant knew the Vehicle suffered from prevalent defects, but still refused to repurchase the Vehicle in violation of the Song-Beverly Consumer Warranty Act.

On 3/14/25, Plaintiff filed this action against Defendant alleging causes of action for: (1) Violation of Civil Code 1793.2(d); Violation of Civil Code 1793.2(b); (3) Violation of Civil Code 1793.2(a)(3); (4) Breach of Express Written Warranty – Civil Code 1791.2(a) and Civil Code 1794 and (5) Breach of the Implied Warranty of Merchantability – Civil Code 1791.1 and 1794. On 4/14/25, Defendant answered the complaint. On 7/11/25, a Stipulated Protective Order was entered in the action.

On 11/7/25, Plaintiff served Defendant with Requests for Production of Documents, Set 1, by mail along with a meet and confer letter regarding electronically stored information (ESI), search terms, and a litigation hold. (Beck Decl., Ex.11, 13). On 12/15/25, Defendant served responses and on 2/20/26 produced some documents. (Id., Ex.12). On 12/15/25, Plaintiff began the meet and confer process regarding Defendant's responses which Plaintiff found to be deficient during which the parties agreed to extend the deadline to file a motion to compel further responses until 3/2/26. (Id., Ex.14-17). The parties were unable to informally resolve the discovery dispute. (Beck Decl. ¶33).

On 3/2/26, Plaintiff filed and served the instant motion seeking an order striking Defendant's objections and compelling further responses to Plaintiff's Requests for Production of Documents, Set 1, Nos. 10, 16-19, 21-22, 27, 40-43 and 56.

Defendant has opposed the motion and Plaintiff has filed a reply to the opposition.

ANALYSIS

First, the Court notes that the notice of motion indicates that Requests 10, 16-19, 21-22, 27, 40-43 and 56 are at issue which are the same Requests set forth in the Separate Statement. (See Notice of Motion, p.ii:7). However, the Memorandum of Points and Authorities also includes references to Requests 7, 8, 34 and 37. (See Motion, p.1:14, p.13:8). Additionally, the proposed order also includes Request 7, but does not include Request 40. The ruling on the motion only addresses the Requests set forth in the notice of motion and accompanying separate statement.

A party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the action or to the determination of any motion made in the action, if the matter itself is admissible or appears reasonably calculated to lead to the discovery of admissible evidence. See CCP 2017.010.

Doubts as to relevance are generally resolved in favor of allowing discovery. Colonial Life & Accident Insurance Co. (1982) 31 C3d 785, 790.

CCP 2031.310(a) provides:

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply:

(1) A statement of compliance with the demand is incomplete.

(2) A representation of inability to comply is inadequate, incomplete, or evasive.

(3) An objection in the response is without merit or too general.”

To prevail on a claim brought under the Song-Beverly

Consumer Warranty Act (the Act), a plaintiff has the burden of proving, by a preponderance of the evidence, several elements, including nonconformity of a vehicle that substantially impaired its use, value or safety; presentation of the vehicle to the manufacturer or authorized representative for repair; and failure to repair the defect after a reasonable number of attempts. Ibrahim (1989) 214 CA3d 878, 886-887; Oregel (2001) 90 CA4th 1094, 1101; Lundy (2001) 87 CA4th 472, 478.

Additionally, under the Act, a buyer may recover damages and other relief when there has been a breach of the implied warranty of merchantability if the vehicle was sold with a known defect. Civil Code 1794(a); Mexia (2009) 174 CA4th 1297, 1304-1305. Further, a buyer may be entitled to a civil penalty upon a showing that the manufacturer willfully failed to abide by any of its obligations under the Act. Civil Code 1794(c).

The subject requests seek documents relevant to Plaintiff's claims against Defendant under the Act including issues related to Defendant's good faith compliance with the Act. As such, Plaintiff has provided sufficient facts to establish the requisite good cause for production of the subject documents. See CCP 2031.310(b)(1).

The subject requests seek documents relating to: (1) Defendant's internal investigation and analysis of the defects affecting the Vehicle and Defendant's refusal to repurchase the Vehicle despite Defendant's prior knowledge of such defects (Requests 16-19, 21-22, 56) and (2) Defendant's warranty and vehicle repurchase policies, procedures and practices (Requests 10, 27, 40-43).

Contrary to Defendant's assertion in the opposition that it "has either agreed to produce documents or stated that it was unable to comply based on a diligent search and reasonable inquiry," Defendant's responses to the subject requests show otherwise. (See Opposition, p.2:10-12). Defendant has responded to all of the requests at issue, except for Request 22, solely with objections. In response to Request 22, Defendant responded with objections and then stated that without waving the objections, it "will produce technical service bulletins, recalls, and campaigns, if any, related to the issues alleged by Plaintiff to exist with the subject vehicle."

Information regarding vehicles other than Plaintiff's vehicle is relevant to the subject matter of this action as it could assist Plaintiff in proving Defendant's willful violation of the Act. Documents responsive to such requests may

reasonably lead to the discovery of information as to the nature and duration of the defects, Defendant's knowledge of the defects, and Defendant's inability to repair the defects. While cases relied on by Plaintiff (i.e., Donlen (2013) 217 CA4th 138 and Doppes (2009) 174 CA4th 967) may not involve the exact circumstance before this Court, they are sufficient to show that the requested information could itself be admissible or lead to the discovery of admissible evidence in this case. Moreover, in a recent case involving Defendant, the Court of Appeal found that the production of such documents is warranted. See Higginson (2026) 118 CA5th 316, 325-326.

Defendant's objections lack merit and/or have not been properly supported. Defendant has the burden of justifying its objections to the requests at issue. Fairmont Insurance Co. (2000) 22 C4th 245, 255; Coy (1962) 58 C2d 210, 220-221; Williams (2017) 3 C5th 531, 541-542. Defendant has failed to meet this burden. As set forth above, the documents sought are relevant and/or could lead to the discovery of admissible evidence. Therefore, the requests are not irrelevant or overbroad. The requests are also not vague and/or ambiguous considering the definitions provided by Plaintiff. Defendant has also failed to establish that responding to any of the subject requests would be overly burdensome or oppressive. To the extent that documents are being withheld on the basis of attorney-client privilege and/or work product doctrine, Defendant is required to provide a privilege log. See CCP 2031.240(c). Defendant has failed to establish that the documents sought contain confidential and/or propriety information and that dissemination of the information would result in injury. See Nativi (2014) 223 CA4th 261, 318. To the extent that any of the requests actually seek confidential, proprietary and/or trade secret information, the Court finds that the protective order entered in this case should adequately protect Defendant's interests.

Defendant's argument that Assembly Bill 1755 somehow limits Plaintiff's scope of discovery is without merit. Any limits imposed by the bill are lifted after mediation. See CCP 871.26. Here, the parties mediated on 11/5/25 and the instant discovery requests were served on 11/7/25.

CONCLUSION

The motion is granted.

With regard to Requests 10, 16-19, 21-22, 27, 40-43 and 56, Defendant's objections are stricken and Defendant is ordered to serve further written responses and to produce documents in accordance therewith within the next 30 days.